

		Cal.App.4th 824, 830.) In the arbitration context, “[w]hen a plaintiff brings a claim which relies on contract terms against a defendant, the plaintiff may be equitably estopped from repudiating the arbitration clause contained in that agreement.” (<i>JSM Tuscany, LLC v. Superior Court</i> (2011) 193 Cal.App.4th 1222, 1239, emphasis added.) But “[a]n essential element of any contract is the consent of the parties, or mutual assent.” (<i>Donovan v. RRL Corp.</i> (2001) 26 Cal.4th 261, 270.) That is not shown here. Equitable estoppel thus cannot apply in this context. Furthermore, Plaintiff’s claims are not clearly dependent on the Warranty. The causes of action allege violations of the Song-Beverly Act, which imposes certain statutory obligations on manufacturers who make express warranties. (<i>Ford Motor Warranty Cases</i> (2025) 17 Cal.5th 1122, 1133.) Plaintiff’s claims are based on Defendant’s violations of these statutory obligations, rather than a term of the Warranty itself. As such, Defendant failed to show equitable estoppel applies. As to the CSA, the contract specifically states that it applies to “our provision of Connected Services to you,” and so does not purport to apply to the Vehicle’s warranty. Further, the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (<i>Ahern v. Asset Management Consultants, Inc.</i> (2022) 74 Cal.App.5th 675, 692-693.) The subject claims must “have their roots in the relationship between the parties which was created by the contract” before they can be deemed to fall within the scope of the arbitration provision. (<i>Rice v. Downs</i> (2016) 248 Cal.App.4th 175, 188.) The “Connected Services” provided under the CSA are not at issue in this case. Plaintiff’s claims thus are not “rooted” in the relationship created by the CSA. Based on the foregoing, Defendant failed to establish the existence of a written agreement to arbitrate between the parties based upon either the Warranty or the CSA. Accordingly, the motion is DENIED. Defendant’s request for judicial notice of the Complaint in this action is GRANTED. (<i>Evid. Code</i>, § 452(d).) <i>Counsel for Plaintiff is ordered to give notice.</i>
7.	Delatorre v. Smith 2-1498067	(Continued)
8.	Zhou v. Liu 26-1551228	Before the Court at present is the “Motion to Correct the Proposed Judgment Recalculate the Monetary Award and Request Other Relief Authorized By Law,” filed on 7/20/26 by Defendants Xiaobo Liu and Yu Zheng (“Defendants”). The Motion is DENIED. The Motion presents various arguments, but Defendants have failed to present supporting authority for any request for relief. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v.</i>

		<i>City of Fresno</i> (1984) 151 Cal.App.3d 635, 647.) Nor have Defendants presented sufficient evidence to suggest that any requested relief is warranted here in any event. The Motion is therefore DENIED. <i>The clerk is to give notice of this ruling.</i>
9.	Wong v. SBS Trust Deed Network 23-1343409	(Moot)
10.	Victory Live, Inc. V. Kai Sports and Entertainment Corp. 25-1512515	Before the Court is motion for an order setting a default prove-up hearing filed by plaintiff Victory Live, Inc. (Plaintiff). For the reasons set forth below, the motion is GRANTED. Plaintiff's request for judicial notice is GRANTED. (<i>Evid. Code</i> § 452, <i>subd. (d)</i>.) Entry of default judgment by the court clerk is authorized only if the action is one "arising upon [a] contract or judgment"; seeks recovery of "money or damages only" in a fixed or determinable amount; and the defendant was not served by publication. (<i>Code of Civ. Proc.</i> § 585, <i>subd. (a)</i>.) In all other cases, a default judgment can be granted only by the judge upon an evidentiary showing. (<i>Code of Civ. Proc.</i> § 585, <i>subd. (b)</i>.) A court judgment is also required where plaintiff seeks "reasonable" attorney fees, <i>i.e.</i>, where the plaintiff wants more than the scheduled fee pursuant to local rule. In such cases, the court clerk has no power to determine the amount and a court judgment is required. (<i>Landwehr v. Gillette</i> (1917) 174 Cal. 654, 657-658.) Here, the defaulted defendants were personally served, and Plaintiff's complaint is an action arising out of an express contract seeking the recovery of money damages in the fixed amount of \$293,691.63. However, Plaintiff seeks reasonable attorney fees in an amount more than allowed by the attorney fee schedule under <i>Local Rule 366</i>. (Compl. at p. 12:5; ROA 45; RJN, Exs. 2 at ¶ 14, Ex. 3 at ¶ 2.) Thus, a court judgment upon evidentiary showing is required. The motion is therefore GRANTED. The Court sets the default prove-up hearing for a date and time to be determined at the hearing in Department C20. Plaintiff shall file and serve a notice of the hearing and re-serve the prior default packet and/or any other required documents pursuant to <i>California Rules of Court</i>, rule 3.1300. <i>Counsel for Plaintiff shall give notice of this ruling.</i>
11.	Pruthi v. Spinnaker Insurance Company 26-1550156	The demurrer of defendant Hippo Analytics, Inc. (Hippo) directed to the complaint of plaintiffs Akhil Pruthi and Indu Pruthi (collectively, Plaintiffs) is OVERRULED. Hippo shall file an answer to the complaint within 20 days. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311,